In addition to these, the President can also remove the chairman or any other member of UPSC for misbehaviour. However, in this case, the President has to refer the matter to the Supreme Court for an enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, the President can remove the chairman or a member. Under the provisions of the Constitution, the advise tendered by the Supreme Court in this regard is binding on the President. During the course of enquiry by the Supreme Court, the President can suspend the chairman or the member of UPSC.

Defining the term 'misbehaviour' in this context, the Constitution states that the chairman or any other member of the UPSC is deemed to be guilty of misbehaviour if he/she (a) is concerned or interested in any contract or agreement made by the Government of India or the government of a state, or (b) participates in any way in the profit of such contract or agreement or in any benefit therefrom otherwise than as a member and in common with other members of an incorporated company.

INDEPENDENCE

The Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of the UPSC:

1. The chairman or a member of the UPSC can be removed from office by the President only in the manner and on the grounds mentioned in the Constitution. Therefore, they enjoy security of tenure.

2. The conditions of service of the chairman or a member, though determined by the President, cannot be varied to his/her disadvantage after his/her appointment.

3. The entire expenses including the salaries, allowances and pensions of the chairman and members and also the staff of the UPSC are charged on the Consolidated Fund of India. Thus, they are not subject to vote of Parliament.

4. The chairman of the UPSC (on ceasing to hold office) is not eligible for further employment in the Government of India or a state[2].

5. A member of the UPSC (on ceasing to hold office) is eligible for appointment as the chairman of UPSC or a State Public Service Commission (SPSC), but not for any other employment in the Government of India or a state[3].

6. The chairman or a member of UPSC is (after having completed his/her first term) not eligible for reappointment to that office (i.e., not eligible for second term).

FUNCTIONS

The UPSC performs the following functions:

1. It conducts examinations for appointments to the all-India services, Central services and public services of the centrally administered territories.

2. It assists the states (if requested by two or more states to do so) in framing and operating schemes of joint recruitment for any services for which candidates possessing special qualifications are required.